Superior Court of the State of California
County of Orange
TENTATIVE RULINGS FOR DEPARTMENT NAME
**HON. YOLANDA V. TORRES**

**Date: June 29, 2026**

**Department C-15 hears law and motion on Mondays at 1:45 p.m.**

These are the Court's tentative rulings. They may become orders if the parties do not appear at the hearing. The Court might also make a different order at the hearing. (*Lewis v. Fletcher Jones Motor Cars, Inc.* (2012) 205 Cal.App.4th 442, fn. 1)

If all counsel submit on the tentative ruling and do not desire oral argument please advise the courtroom clerk or courtroom attendant by calling (657) 622-5215. Please do not call the department unless all parties submit on the tentative ruling. If all sides submit on the tentative ruling and so advise the court, the tentative ruling shall become the court's final ruling and the prevailing party shall give notice of the ruling and prepare an order for the court's signature if appropriate under Cal.R. Ct. 3.132.

Court reporters: Official court reporters are not provided in this department for any proceedings. If the parties desire the services of a court reporter, the parties should follow the procedures set forth in the Privately Retained Court Reporter Policy on the court's website at www.occourts.org.

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| 1 | **Dang v. America West Lender Services, LLC**<br><br>2025-01477410<br><br>Demurrer to 1st Amended Complaint | Defendants 5692 Karen Ave LLC and Edward Balta's<br><br>Demurrer to Plaintiff's First Amended Complaint is OVERRULED.<br><br>The Court ORDERS Defendants 5692 Karen Ave LLC and Edward Balta to file an answer within 20 days.<br><br>To prove intentional interference with prospective economic advantage, a plaintiff must show: (1) the existence of an economic relationship between the plaintiff and some third party that contains the probability of future economic benefit to the plaintiff; (2) defendant's knowledge of the relationship; (3) intentionally wrongful acts by defendants designed to disrupt the relationship; (4) actual disruption of the relationship; and (5) economic harm proximately caused by defendant's action. (*Cocoa AJ Holdings, LLC v. Schneider* (2025) 115 Cal.App.5th 980, 992-993 [citation omitted].)<br><br>Defendants contend Plaintiff fails to allege Defendants had knowledge of her relationship or contract with Defendant American West Lender Services, LLC (AWLS) and that |

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| | | Defendants committed any "intentionally wrongful acts" to interfere with the relationship.<br><br>Plaintiff alleges:<br><br>- Plaintiff was the highest bidder at a foreclosure auction. (FAC ¶ 1.)<br><br>- Soon after, Plaintiff notified AWLS, the Trustee listed on the Certificate of Sale, it intended to file an affidavit and declare owner-occupancy. (FAC ¶ 3.<br><br>AWLS responded to notify Plaintiff the sale was rescinded due to a filed bankruptcy. (FAC ¶ 3.)<br><br>- Defendants SBR Empire LLC, 5692 Karen Ave LLC, and Balta knew of the pending trustee's sale per the recording instruments such as Notice of Trustee's Sale and the subsequent sale and knew the property had been sold to a third party on 1/24/25. (FAC ¶¶ 7, 21.)<br><br>Plaintiff further alleges:<br><br>- Defendants knew of the fraud and gave substantial assistance or encouragement to AWLS. (FAC ¶ 18.)<br><br>- Defendants lied when stating the sale had to be rescinded due to bankruptcy. (FAC ¶ 35.)<br><br>- Defendants encouraged AWLS and US Bank to rescind the transaction. (FAC ¶ 44.)<br><br>Plaintiffs allegations are sufficient at the pleading stage. |
| 2 | **Richardson v. City of Laguna Beach**<br><br><br>**2025-01510852**<br><br><br>Demurrer to !st Amended Complaint/Motion to strike portions of 1st Amended Complaint | Defendant State of California's Demurrer to the First Amended Complaint (FAC) is SUSTAINED with 20 days leave to amend.<br><br>Public entities are immune from common law tort liability and instead liability must be based on a statute. (Gov. Code, § 815(a).) As to the second cause of action for premises liability, Plaintiff cites no statute upon which he claims his cause of action is based.<br><br>As to the third cause of action for negligence, Plaintiff cites to Government Code sections 815.2, 815.4, 820(a), 840.2, and 840.4. In a claim against a government entity, a plaintiff must plead "every fact essential to the existence of statutory liability must be pleaded with particularity, including the existence of a statutory duty." (*Searcy v. Hemet Unified School Dist.* (1986) 177 Cal.App.3d 792, 802.) Plaintiff fails |

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| | | to plead any facts with sufficient particularity to support a cause of action under Section 815.2, 815.4, 820(a), 840.2.<br><br>Accordingly, the demurrer is sustained as to the second and third causes of action.<br><br>**<u>Motion to Strike</u>**<br><br>Defendant State of California's Motion to Strike Portions of the First Amended Complaint (FAC) is GRANTED in part and DENIED in part.<br><br>Defendant's request to strike a portion of Paragraph 27 is denied as moot.<br><br>Defendant's request to strike Plaintiff's request for prejudgment interest, injunctive relief pursuant to Civil Code section 51, and attorney's fees pursuant to Civil Code sections 52 and 54.1 are granted. Government entities are immune from prejudgment interest. (Civ. Code, § 3291.) Relief pursuant to Civil Code section 51, 52, and 54.1 must be supported by a cause of action for disability discrimination under the Unruh Act. |
| 3 | **Doe #1 J.H. v. Roe 1**<br><br>2022-01299923<br><br>Motion to be relieved as counsel of record | The motion of attorney James West of Marc J. Bern & Partners, LLP, to withdraw as attorney of record for Plaintiff John Doe #1 J.H. is GRANTED. (Code Civ. Proc. § 284, CRC 3.1362.) Attorney will be relieved as counsel of record for client effective upon filing of a proof of service of the signed order on client. Moving attorney is to give notice. |
| 4 | **Electrolurgy Inc. v. TRM Gamma Aerospace Acquisition LLC**<br><br>2025-01515908<br><br>Motion to be relieved as counsel of record | The motion of attorney Mikle S. Jew and John P. Riley to withdraw as attorney of record for Defendant TRM Gamma Aerospace Acquisition, LLC is GRANTED. (Code Civ. Proc. § 284, Cal. Rules of Court, rule 3.1362.) Attorneys will be relieved as counsel of record for client effective upon filing of a proof of service of the signed order on client.<br><br>Moving attorneys are to give notice. |
| 5 | **McCrea v. Riemann**<br><br>**2024-01417305**<br><br>Motion to be relieved as counsel as to D 520 Arbitrage Fund, LP; as to Def, 520 Arbitrage Fund LLC; as counsel as to Def, 520 Capital LLC; as to Def. 520 Capital LP; as Counsel | The motion of attorney Stanley M. Gordon to withdraw as attorney of record for Defendants 520 Arbitrage Fund, LP; 520 Arbitrage LLC; 520 Capital, LLC; 520 Capital LP; and 520 Capital Fund 2 LP is DENIED.<br><br>Mr. Gordon has not filed mandatory forms Declaration in Support of Attorney's Motion to Be Relieved as Counsel--Civil (form MC-052) and Order Granting Attorney's Motion to Be Relieved as Counsel--Civil (form MC-053). In addition, Mr. Gordon has not established good cause for counsel to withdraw. To the extent the law firm Gordon & Reynolds |

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| | as to Def 520 Capital Fund 2, LLP | seeks to withdraw as well, the motion does not identify the law firm. |
| 7 | **Manighalam v. Eidemiller**<br><br>2023-01342618<br><br>Motion for Judgment on the Pleadings 1st Amended Complaint | Defendants Exp Realty of California, Inc. and Manuel Domingeuz move for judgment on the pleadings as to the first, second, and third causes of action in Plaintiffs' first amended complaint.<br><br>Defendants Exp Realty of California, Inc. and Manuel Domingeuz's Motion for Judgment on the pleadings is DENIED.<br><br>**First cause of action - Fraud**<br><br>"The elements of fraud, which give rise to the tort action for deceit, are (a) misrepresentation (false representation, concealment, or nondisclosure); (b) knowledge of falsity (or 'scienter'); (c) intent to defraud, i.e., to induce reliance; (d) justifiable reliance; and (e) resulting damage." (*Lazar v. Superior Court* (1996) 12 Cal.4th 631, 638.<br><br>A seller's broker and agent owe a statutory duty to the buyer of the residential property to conduct a reasonably competent and diligent visual inspection of the property and disclose all facts materially affecting the value or desirability of the property that an inspection would reveal. (*Leko v. Cornerstone Building Inspection Service* (2001) 86 Cal.App.4th 1109, 1115-1116 (citing Civ. Code, §§ 2079, subd. (a), 2079.16; see also Civ. Code, § 1106).) "<br><br>A selling broker has no obligation to purchasers to investigate public records or permits pertaining to title or use of the property." (*Field v. Century 21 Klowden-Forness Realty* (1998) 63 Cal.App.4th 18, 24 (citing Civ. Code, § 2079.3).)<br><br>While Plaintiffs allege the BBQ structure and its components were visible during the inspection period, they do not allege how the alleged defects with the *functionality* of the BBQ, including its leaking gas line and the fact its electric line and outlet and gas burner were not working were visible such that they would have been identified during Defendants' "reasonably competent and diligent visual inspection."<br><br>With respect to the issue of smoke, Defendants contend their inspection was limited to the interior of the property. Plaintiffs allege, however, "there was constant smoke from the next-door neighbor into the Property." (FAC ¶ 15 [emphasis added].) While Defendants further contend this issue was not observable upon a visual inspection of the property (Mtn. at 19:28-20:2), Plaintiffs allege the "constant smoke from the neighbor's property [was] visually detectable during their inspection of the Property." (FAC ¶ 29.) |

Finally, Plaintiff alleges the alleged fraud was committed by Dominguez and EXP Realty. (FAC ¶¶ 11, 12, 18, 26, 29, 32.)

Accordingly, the Court DENIES Defendants' motion as to the first cause of action.

**Second cause of action for fraudulent concealment**

"[T]he elements of an action for fraud and deceit based on concealment are: (1) the defendant must have concealed or suppressed a material fact, (2) the defendant must have been under a duty to disclose the fact to the plaintiff, (3) the defendant must have intentionally concealed or suppressed the fact with the intent to defraud the plaintiff, (4) the plaintiff must have been unaware of the fact and would not have acted as he did if he had known of the concealed or suppressed fact, and (5) as a result of the concealment or suppression of the fact, the plaintiff must have sustained damage." (*Boshma v. Home Loan Center, Inc.* (2011) 198 Cal.App.4th 230, 248.

As discussed above, Plaintiffs sufficiently allege Defendants' concealment of the issue of the smoke coming into the property following Defendants' visual inspection. Plaintiffs allege the concealment was intended to "induce Plaintiffs into purchasing the Property," (FAC ¶ 28), that had Plaintiffs known about the property's issues, including the smoke, it would not have purchased the property, and that Plaintiffs suffered financial harm and physical injuries as a result of Defendants' actions. (FAC ¶ 22, 23, 29.)

Accordingly, the Court DENIES Defendants' motion as to the second cause of action.

**Third case of action Negligent misrepresentation**

The elements of a negligent misrepresentation are (1) the misrepresentation of a past or existing material fact, (2) without reasonable ground for believing it to be true, (3) with intent to induce another's reliance on the fact misrepresented, (4) justifiable reliance, and (5) resulting damage. (*Borman v. Brown* (2021) 59 Cal.App.5th 1048, 1060.) "Negligent misrepresentation does not require knowledge of falsity."(Ibid.)

"[T]he same elements of intentional fraud also comprise a cause of action for negligent misrepresentation, with the exception that there is no requirement of intent to induce reliance." (*Tenet Healthsystem Desert, Inc. v. Blue Cross of California* (2016) 245 Cal.App.4th 821, 845.) As Plaintiffs sufficiently plead a cause of action for intentional fraud as

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| | | discussed above, Plaintiffs also sufficiently plead a cause of action for negligent misrepresentation. (See ibid.)<br><br>Accordingly, the Court DENIES Defendants' motion as to the third cause of action. |
| 8 | **Ayoubi v. National General Premier Inc. Co.**<br><br>2024-01394713<br><br>Motion for Summary Judgment/Adjudication | Defendant National General Premier Insurance Company's Motion for Summary Judgment/Adjudication is CONTINUED to 7/27/26 at 1:45 p.m. in this Department.<br><br>The Court's electronic docket reflects that on 6/22/26, Plaintiff attempted to file a request for dismissal as to moving Defendant, but the filing was rejected by the Court Clerk for the following reason: "The attorney or party information is incomplete or inconsistent with our records. State Bar Number was not listed in the document header. Please ensure that all fields match our records."<br><br>Plaintiff shall promptly file a revised request for dismissal, after which the Court will take the continued hearing off calendar. |
| 9 | **Hassanin v. RDS Real Estate LLC**<br>2023-01335896<br><br>Motion for Summary Judgment/Adjudication | Defendants RDS Real Estate, LLC and Ibrahim Ghanem's motion for summary judgment or in the alternative (1) motion for summary adjudication or (2) motion for Judgment on the pleadings is GRANTED. Leave to amend is DENIED.<br><br>Defendants' request for judicial notice is GRANTED. (See Evid. Code, § 452, subd. (d).)<br><br>Defendants' objections are SUSTAINED.<br><br>Defendants seek summary judgment on the grounds that plaintiff Mohamed Hassanin, DC ("Hassanin") does not have standing to assert the causes of action alleged in the operative Second Amended Complaint ("SAC") because he is not a party to the Agreement that forms the basis of the SAC.<br><br>A corporation exists as a separate legal entity, distinct from its owners/shareholders, and as a result, owners/shareholders have no personal or individual right of action against third persons for a wrong or injury to the corporation. (*Grosset v. Wenaas* (2008) 42 Cal.4th 1100, 1108; *Jones v. H.F. Ahmanson & Co.* (1969) 1 Cal.3d 93, 107.) Such claims must be brought by the corporation itself. (See Code Civ. Proc. §367 [every action must be prosecuted in the name of the real party in interest].) If the corporation fails or refuses to do so, a stockholder may bring a derivative suit on behalf of the corporation. (*Grosset*, supra, 42 Cal.4th at p. 1108; Jones, supra, 1 Cal.3d at p. 107.)<br><br>Defendants' material facts establish the following: Hassanin filed the original complaint on behalf of himself individually arising from a written Marketing Services Agreement (the "Agreement"). (UMF Nos. 1-2.) The complaint alleges the |

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| | | Agreement was made between defendant RDS, a limited liability company, and Lakewood Chiropractic & Medical Center, a California professional corporation ("Lakewood"). (UMF Nos. 3-4.) Neither Hassanin nor defendant Ghanem are named as parties to or beneficiaries of the Agreement. (UMFNo. 5.) On that basis, Defendants filed a demurrer to the complaint, asserting that Plaintiff and Ghanem were improperly joined as parties. (UMF No. 6.)<br><br>On or about 5/17/24, Hassanin filed a First Amended Complaint ("FAC") pursuant to which he added Lakewood as a plaintiff, alleging that Lakewood is a California corporation and that Hassanin entered into the Agreement on behalf of Lakewood. (UMF Nos. 7-8 [FAC ¶¶3, 9].) However, Hassanin did not remove himself as a plaintiff, nor did he remove Ghanem as a defendant. (UMF No. 9 (FAC, ¶¶ 1, 3-4].) As a result, on 6/8/24, Defendants filed a demurrer to the FAC, again asserting that Hassanin and Ghanem were improperly joined as parties. (UMF No. 10.)<br><br>Hassanin opposed the motion arguing that he was a proper plaintiff because Lakewood is only his "DBA" and not a separate legal entity. (UMF No. 11.) Because this was contrary to Lakewood's alleged status in the FAC and the Agreement as a California corporation and was based upon facts not alleged in the FAC, the court sustained the demurrer with leave to amend. (UMF No. 12.)<br>On 3/21/25, Hassanin filed the SAC with only himself as plaintiff and alleging he conducts business using Lakewood as a "DBA". (UMF No. 13 [SAC ¶¶1, 3].) Lakewood, as a California professional corporation or other separate entity, was not named as a plaintiff in the SAC and is not a party to this action. (UMF No. 14.)<br><br>Hassanin did not file a separate statement in support of his opposition to the instant motion as required by Code of Civil Procedure section 437c, subdivision (b)(3). Therefore, these facts are undisputed.<br><br>The undisputed facts establish Hassanin did not have standing when he commenced this action in his individual capacity because the Agreement was between Lakewood and RDS and all of the cause of action arise from the Agreement. The FAC did not resolve the standing issue because Hassanin did not remove himself as a plaintiff. Further, removing Lakewood as a plaintiff from the SAC and recasting Lakewood as his "DBA" instead of a corporation did not resolve the standing issue because the new allegations of the SAC impermissibly contradict the FAC. The SAC's allegations also contradict the Agreement, which is attached as an exhibit to the SAC and shows Lakewood entered into the Agreement (UMF No. 4.) This unexplained contradiction in the SAC to avoid the defect in the FAC establishes the SAC is a sham pleading and must |

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| | | be disregarded. (See, *Owens v. Kings Supermarket* (1988) 198 Cal.App.3d 379, 383-384; *Alameda County Waste Management Authority v. Waste Connections US, Inc.* (2021) 67 Cal.App.5th 1162, 1174-1175.)<br><br>In his opposition, Hassanin concedes he is not a proper party to this action. (See Opp., p. 5:11.) As such, Defendants have met their initial burden. Hassanin has not submitted admissible evidence establishing triable issues of material fact.<br><br>Hassanin instead contends Lakewood is the "DBA" for another entity, Hassanin Chirospine & Rehab Corp. ("HCRC"), and he intends to amend the complaint again to name HCRC as plaintiff. (See Opp., p. 5:12-22.) Hassanin's counsel contends she learned a few weeks ago that the "Lakewood" fictitious business name is owned by HCRC, and not Hassanin. (See Cronin Decl., ¶¶ 3-4.)<br><br>"It is well settled that the pleadings set the boundaries of the issues to be resolved at summary judgment." (*Vulk v. State Farm General Ins. Co.* (2021) 69 Cal.App.5th 243, 255.) "A party may not oppose a summary judgment motion based on a claim, theory, or defense that is not alleged in the pleadings. Evidence offered on an unpleaded claim, theory, or defense is irrelevant because it is outside the scope of the pleadings." (*California Bank & Trust v. Lawlor* (2013) 222 Cal.App.4th 625, 637, fn. 3.) If a plaintiff wants to make a factual assertion or present a legal theory not yet pleaded, the plaintiff should seek leave to amend before the hearing on the motion for summary judgment. (*Vulk*, supra, 69 Cal.App.5th at p. 255.) Separate statements and declarations in opposition to a motion for summary judgment are not substitutes for amended pleadings. (Ibid.)<br><br>Here, Hassanin failed to seek leave to amend. In his opposition he merely states he will request a stipulation from Defendants to amend the pleadings to correct the plaintiff and, if a stipulation cannot be reached, he will move the court for leave to amend pursuant to Code of Civil Procedure section 473, subdivision(a)(1). (See Opp., p. 5:12-22.) To date, Hassanin has not done either. The declaration from Hassanin's counsel identifying a new potential plaintiff is irrelevant and not a substitute for an amended pleading.<br>"A trial court has wide discretion to allow the amendment of pleadings, and generally courts will liberally allow amendments at any stage of the proceeding. But if the proposed amendment fails to state a cause of action, it is proper to deny leave to amend. Further, unwarranted delay in seeking leave to amend may be considered by the trial court when ruling on a motion for leave to amend, and appellate courts are less likely to find an abuse of discretion where, for example, the proposed amendment is offered after |

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| | | long unexplained delay or where there is a lack of diligence. Thus, when a plaintiff seeks leave to amend his or her complaint only after the defendant has mounted a summary judgment motion directed at the allegations of the unamended complaint, even though the plaintiff has been aware of the facts upon which the amendment is based, it would be patently unfair to allow plaintiffs to defeat the summary judgment motion by allowing them to present a moving target unbounded by the pleadings.” (*Applegate v. Carrington Foreclosure Services, LLC* (2025) 112 Cal.App.5th 356, 368-369.<br><br>Here, Hassanin has not established leave to amend is possible or appropriate. First, it is undisputed that the Agreement is between RDS and Lakewood, as a professional corporation, and HCRC is not a party to the Agreement. Therefore, HCRC does not have standing to assert claims arising from the Agreement. Hassanin has not cited authority for substituting HCRC for Lakewood. Thus, the SAC cannot be amended to state a viable cause of action.<br><br>Second, Hassanin has not explained his unreasonable delay seeking leave to amend. Hassanin’s counsel was put on notice of the standing issue as early as 9/28/23 when Defendants filed their demurrer to the complaint. Even if Hassanin’s supporting declaration was admissible, it does not explain why Hassanin’s counsel (1) did not make an effort before “early last year” when counsel spoke with Hassanin’s office administrator to determine Lakewood’s status; (2) assumed Lakewood was a “DBA” for Hassanin individually and did not take further steps to investigate Hassanin’s status as a plaintiff despite standing being an ongoing issue; (3) waited until 6/4/26, nearly two months after Defendants filed this motion, to further investigate Hassanin’s standing; and (4) has not filed a motion for leave to amend to add HCRC as a plaintiff. The declaration establishes a lack of diligence and does not explain the unwarranted delay.<br><br>Lastly, Defendants have established it will be prejudiced if leave to amend is granted. Defendants have already incurred costs preparing the instant motion and the prior demurrers to challenge the ongoing standing issue. If HCRC is added as the plaintiff, Defendants will be forced to incur additional costs to bring another motion for summary judgment that will, in turn, require a trial continuance. Currently, trial is set for 8/9/26, less than two-months away.<br><br>The motion for summary judgment is GRANTED. Leave to amend is DENIED. |